

10. Demurrer to Twelfth Cause of Action for Injunctive Relief

The City demurs to the Twelfth Cause of Action on the grounds that an injunction (1) is a remedy, not a cause of action, and (2) requires an underlying viable claim which has not been pled.

Given that the demurrer as to Petitioners' other substantive claims authorizing injunctive relief has been overruled (or sustained with leave to amend), the Court does not find that the injunctive relief cause of action fails for the failure to have a viable underlying claim.

While the title "Twelfth Cause of Action for Injunctive Relief" is arguably superfluous because an injunction is a remedy and not a cause of action, sustaining a demurrer on that ground would elevate form over substance. The Prayer properly requests injunctive relief, and the facts pled in Paragraphs 161-165 of the Twelfth Cause of Action support that request. Sustaining a demurrer simply because the facts supporting injunctive relief were alleged under the heading Twelfth Cause of Action rather than among the general allegations is a futile act.

Based on the foregoing, the demurrer to the Twelfth Cause of Action is OVERRULED.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Angel Alfaro

23PR000065

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Co-Conservators are acting in the best interest of the Conservatee. Thus, the case is set for a Review–Biennial hearing in two years, on July 14, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Sienna Notaro

26PR000113

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON – LIMITED CONSERVATORSHIP

TENTATIVE RULING: The matter is CONTINUED to August 11, 2026, at 8:30 a.m. in Dept. B to permit Petitioners to address the following issues:

1. There is no Proof of Service on paternal grandparents Francisco Walle and Nancy Notaro in the Court's file, as mandated by Probate Code Sections 1821, subdivision (b), and 1822, subdivision (b)(2).

2. There is no proof of personal service on the Proposed Conservatee of the Citation, issued May 21, 2026, as required pursuant to Probate Code sections 1823, subdivision (a) and 1824.
3. Petitioner is directed to submit a Proposed Order Appointing Legal Counsel (GC-006) for the proposed conservatee pursuant to Probate Code Section 1471, subdivision (c). Upon request, the Court may appoint the Public Defender to represent the proposed conservatee.
4. The Petition is not verified by petitioner Elizabeth Notaro as mandated by Probate Code, Section 1021. Petitioner is directed to file an amended verified petition.

Petitioners are encouraged to contact the Court's Self-Help Center, located on the lower level of the Historic Courthouse at 825 Brown Street, for assistance.

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Conservatorship of Marsha Makemson

26PR000115

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON AND ESTATE

APPEARANCE REQUIRED

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Conservatorship of Rajeshwari Pandey

26PR000141

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON

TENTATIVE RULING: The matter is CONTINUED to August 11, 2026, at 8:30 a.m. in Dept. B to permit petitioners to address the following issues:

- (1) There is no Proof of Service on relatives within the second degree as mandated by Probate Code Sections 1821, subdivision (b), and 1822.
- (2) There is no proof of personal service on the Proposed Conservatee of the Citation, issued June 24, 2026, as mandated by Probate Code sections 1823, subdivision (a) and 1824.
- (3) There is no medical inability to attend hearing, (Judicial Counsel of California form GC-325) on file as mandated by Probate Code Section 1825, subdivision (a)(2).

Petitioners are encouraged to contact the Court's Self-Help Center, located on the lower level of the Historic Courthouse at 825 Brown Street, for assistance.

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Conservatorship of Lee Ann Sedgwick

PR22875

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Co-conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a